

As Movants argue, Christensen is outside the District's control, potentially adverse to the District, and is noticed for examination without any confining subject matter topics. (Movants' Reply 7:1–2.) Movants contend there is no reason to believe Christensen would obey instructions from the District's counsel to refuse to answer a question on the basis of privilege. (*Id.* at 7:2–4.) Protective orders are the appropriate vehicle to define the boundaries of inquiry and limit improper questioning before it occurs. (CCP § 2025.420(b).) EMC's response that privilege concerns can be addressed through timely objections during the deposition does not answer the problem, because the person best positioned to raise those objections is a prepared District designee chosen and instructed by the entity that holds the privilege, not a nonparty former employee. (See CCP § 2025.230; Evid. Code §§ 953, 954.)

In sum, EMC has failed to carry its burden to justify individual, nonparty discovery from Christensen.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501285	WEBB VS DESERT HOT SPRINGS OIL CORPORATION	MOTION TO BE RELIEVED AS COUNSEL AS TO MARGARET WEBB

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday August 19, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501431	GAMALIEL ROJO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES BY SENET GAMALIEL ROJO

Tentative Ruling: Granted.

Attorney fees in the reduced, but reasonable amount of \$14,165.00 and costs in the amount of \$1,758.15 are payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP § 1019.5.

Plaintiff Senet Gamaliel Rojo brings this Song-Beverly action regarding a 2024 GMC Canyon that had engine defects. On 2/27/25, Plaintiff filed his complaint for: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of express warranty; and (5) breach of implied warranty of merchantability. On 2/23/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney fees of \$17,398, a .3 multiplier of \$5,219.40, and costs of \$1,758.15. Plaintiff argues that fees and costs are mandatory to the prevailing party. Plaintiff contends counsel's rate are reasonable as shown by other cases. Plaintiff contends that hours billed are reasonable as any entries that are duplicative, redundant or unnecessary have been removed. Plaintiff asserts a multiplier is warranted.

In opposition, Defendant contends that the parties quickly settled at mediation for a case in 5 months. It argues counsel's \$525 rate is excessive. It challenges specific entries as duplicative, unreasonable, and estimated work for the fees. It asserts that the multiplier is not warranted.